

rule, under which a direction to convert wasting property is implied, being to secure a fair adjustment of the rights of the tenant for life and those coming after him, it follows that where a residue which, without any express trust for conversion, is bequeathed to persons in succession, consists of property which, though not wasting, is of a class producing a high rate of interest in proportion to its money value, and liable consequently to additional risk such as railway shares, shares of insurance or other companies, foreign bonds, or stocks, &c., the persons entitled in expectancy have a right to call for the conversion of such property into Three per Cent. Stock (*d*).

8. **Case of debts.**— Even where the general estate or residue is directed to be enjoyed *specifically*, the tenant for life is not entitled to enjoy in specie what is not an investment, but a mere debt (*e*), and a special power for the executors and trustees “to *continue* invested any of the testator’s *government securities*” will not justify the trustees in continuing *long annuities* (*f*).

[*301] *9. **Direction for investment of personal estate and accumulations of income in land.**— If a testator direct that his personal estate shall be converted and laid out in a purchase of lands, to be settled upon A. for life, with remainders over, and that *the interest of the personal estate shall be accumulated and laid out in a purchase of lands* to be settled to the same uses, the Court to prevent the hardship that would fall upon the tenants for life, if the purchases were deferred for a long period, either from unavoidable circumstances, or from the dilatoriness of the trustee, interprets the intention in such cases to be that the accumulation should be confined to one year from the testator’s death. At the expiration of that period, the Court presumes the trustees to

(*d*) Thornton v. Ellis, 15 Beav. 193; Blann v. Bell, 5 De G. & Sm. 658; 2 De G. M. & G. 775; Wightwick v. Lord, 6 H. L. Cas. 217. But the Court will not allow a mortgage to be called in, without an inquiry whether it is for the benefit of all

parties to do so; per Lord Eldon, in Howe v. Dartmouth, 7 Ves. 150.

(*e*) Holgate v. Jennings, 24 Beav. 630, per M. R.; but it may be doubted whether the general doctrine laid down was rightly applied.

(*f*) Tickner v. Old, 18 L. R. Eq. 422.